

24SMCV02205 24SMCV02205

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TENTATIVE RULING

July 29, 2026

24SMCV02205 (Banuelos v. American
Honda Motor Co., Inc.)

RELEVANT BACKGROUND

On May 10, 2024,
plaintiff Cristina Buelos (Plaintiff) filed her complaint against defendant
American Honda Motor Co., Inc. (Defendant) alleging Song-Beverly
violations.

On or about September 5,
2024, Defendant served a Code of Civil Procedure § 998 Offer to Compromise in
the amount of \$15,000.00, plus attorneys' fees, costs, and expenses to be
determined by Motion. (Jacobson Decl., ¶ 79.)

On October 10, 2024,
Plaintiff filed a notice of conditional settlement specifying the date by which the
dismissal was to be filed as January 8, 2025. (10/10/24 Notice of Settlement.)

On June 24, 2025, the
Court ordered that the Complaint filed by Plaintiff dismissed without
prejudice. (6/24/25 Minute Order.)

INSTANT MOTION

On May 1, 2026, Plaintiff filed the instant motion for attorney's fees. Defendant filed an opposition, and Plaintiff filed a reply.

DISCUSSION

I.

MOTION

FOR ATTORNEY'S FEES

A.

Timeliness

"A

notice of motion to claim attorney's fees for services up to and including the rendition of judgment in the trial court-including attorney's fees on an appeal before the rendition of judgment in the trial court-must be served and filed within the time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited civil case or under rules 8.822 and 8.823 in a limited civil case." (Cal. Rules of Court, rule 3.1702, subd. (b)(1).)

"[T]he

time for filing a notice of appeal is the earlier of 60 days after service of notice of entry of judgment or 180 days after entry of judgment. (Id., rule 8.104(a)(1).) A voluntary dismissal is 'effectively a 'judgment' ' within the meaning of the rule prescribing the time to appeal. [Citations.] Thus, 'the clock starts to run [on the time to move for attorney fees] from either the service of notice of entry of judgment or dismissal (starting a 60-day clock), or if no such notice is given, the entry of judgment or dismissal (starting a 180-day clock).' [Citations.]" (Hatlevig v. General Motors LLC (2026) 118 Cal.App.5th 644, 649; see also Sanabria v. Embrey (2001) 92 Cal.App.4th 422, 426-427.)

"[W]hen

a case settles the plaintiff 'must serve and file a request for dismissal of the entire case within 45 days.' [Citation.] the plaintiff does not do so, "the court must dismiss the case 45 days after it receives notice of settlement unless good cause is shown why the case should not be dismissed.' [Citation.]" (Hatlevig, supra, 118 Cal.App.5th at p.

649, citing Cal. Rules of Court, rule 3.1385.)

“If

the settlement agreement conditions dismissal of the entire case on the satisfactory completion of specified terms that are not to be performed within 45 days of the settlement, including payment in installment payments, the notice of conditional settlement served and filed by each plaintiff or other party seeking affirmative relief must specify the date by which the dismissal is to be filed.” (Cal. Rules of Court, rule 3.1385, subd. (c)(1).) “If the plaintiff or other party required to serve and file a request for dismissal within 45 days after the dismissal date specified in the notice does not do so, the court must dismiss the entire case unless good cause is shown why the case should not be dismissed.” (Id., subd. (c)(2).)

The

Court finds that Plaintiff’s motion for attorney’s fees, filed on May 1, 2026, is untimely because the Court ordered the Complaint filed by Plaintiff dismissed without prejudice on June 24, 2025. (Cal. Rules of Court, rule 3.1702, subd. (b)(1); Hatlevig, supra, 118

Cal.App.5th at p. 649; 6/24/25 Minute Order.) Plaintiff was required to serve and file any motion for attorneys’ fees within the time to appeal, here, at most 180 days after the dismissal, or December 22, 2025. Plaintiff did not file or serve this motion until May 1, 2026, nearly eleven months after the dismissal and over four months after Plaintiff’s deadline expired. Therefore, Plaintiff’s motion is untimely and must be denied under rule 3.1702(b)(1).

The

Court disagrees with Plaintiff’s argument that Hatlevig is distinguishable. Hatlevig is not distinguishable merely because the opinion does not indicate whether the parties in that case agreed that the Court would retain jurisdiction to enforce the settlement under Code of Civil Procedure section 664.6. Additionally, Plaintiff does not cite any authority in support of the contentions that retaining jurisdiction under Code of Civil Procedure section 664.6 extends the deadline under California Rules of Court, rule 3.1702(b)(1), or that the settlement language regarding payment overrides the statutory deadline. (See Motion and Reply, generally.)

Nor

is Hatlevig distinguishable merely because it involved an automatic dismissal under California Rules of Court, Rule 3.1385(b). Again, Hatlevig

sets forth the rule that a “voluntary dismissal ... starts the clock running on the time to move for attorney fees when the dismissal concludes the litigation and triggers a right to fees.” (Hatlevig, supra, 118 Cal.App.5th at p. 649.) Plaintiff fails to sufficiently explain why it should matter whether the voluntary dismissal falls under subdivision (b) or (c) of rule 3.1385.

Madrigal

v. Hyundai Motor America (2023) 90 Cal.App.5th 385 does not assist Plaintiff. That holding is limited to the issue whether a stipulated settlement under Code of Civil Procedure section 664.6 qualifies as a “judgment” for purposes of awarding costs under Code of Civil Procedure section 998 where a plaintiff fails to obtain a more favorable result than a rejected 998 offer. (Id. at p. 402.) Madrigal does not hold that a judgment occurs only after attorneys’ fees have been paid.

Additionally,

even if the Court had not entered the June 24, 2024, minute order, the action would have been deemed dismissed 45 days after January 8, 2024, pursuant to California Rules of Court, rule 3.1385, subdivision (c)(2). Plaintiff’s notice of conditional settlement filed on October 10, 2024, specified the date by which the request for dismissal was to be filed as January 8, 2025, in accordance with rule 3.1385. (10/10/24 Notice of Settlement; Cal. Rules of Court, rule 3.1385.) Under rule 3.1385, subdivision (c)(2), if a Plaintiff does not file the request for dismissal within 45 days of the date specified in the notice, the Court must dismiss the entire case within 45 days after the dismissal date specified in the notice. (Id., subd. (c)(2) (emphasis added).) Therefore, even absent the Court’s June 24, 2024, minute order, the action would have been deemed dismissed 45 days after January 8, 2025, as required pursuant to rule 3.1385(c)(2), on February 22, 2025.

Lastly,

the Court notes that Plaintiff’s citation to a Los Angeles Superior Court opinion is neither controlling nor, in the absence of that Court’s analysis, persuasive.

Accordingly,

Plaintiff’s motion for attorney’s fees is DENIED as untimely. (Cal. Rules of Court, rule 3.1702, subd. (b)(1).)